



The British Patent System during the Industrial Revolution 1700–1852: From Privilege to Property

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To cite this article: Niels Pepels (2017) The British Patent System during the Industrial Revolution 1700–1852: From Privilege to Property, The Journal of Legal History, 38:3, 338–340, DOI: [10.1080/01440365.2017.1388004](https://doi.org/10.1080/01440365.2017.1388004)

To link to this article: <https://doi.org/10.1080/01440365.2017.1388004>



Published online: 23 Oct 2017.



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The British Patent System during the Industrial Revolution 1700–1852: From Privilege to Property, by Sean Bottomley, Cambridge, Cambridge University Press, 2014, 330 pp., £77 (hardback), ISBN 978-1-107-05829-3

This monograph, part of the Cambridge Intellectual Property and Information Law series, traces the origins of patent law and it reassesses how patent law has influenced the British industrial revolution in the eighteenth and nineteenth centuries.

Without a doubt, patents played a major role in the British industrial revolution. However, the importance of this role is assessed differently by different authors who, on the basis of their respective research, reach different conclusions. Some argue that the many inventions during the industrial revolution were invented because there was a patent system in place with a judiciary able and willing to enforce the patents, while others argue that many inventions were made *despite* a weak and ineffective patent system. This book attempts to examine the operation of the patent system in England, Scotland and Ireland up to 1852.

The target audience of this book is hard to determine. Bottomley explains precedent in common law (22), the difference between deeds and contracts (210) and the principle of estoppel (210), and includes several graphs and statistics seemingly aimed towards historians and economists. He does, however, go into great detail explaining case law in chapters three, four and five, and does not explain what a trial at *nisi prius* (135) is, which would be indicative of writing for an audience with a legal background. These elucidations of basic legal concepts, while not expanding on rather technical case law and other legal concepts is somewhat confusing, although it must be added that the analysis of the case law is excellently done.

Following an introductory chapter, the book is divided into two parts. The first part concerns the patent system and describes how the patent turned from a royal privilege into an (intellectual) property right. The second part discusses the economic value of patents throughout the eighteenth and first half of the nineteenth century and the various ways in which patent rights boosted the British industrial revolution.

Chapter one serves as an introduction to patent law and lays out economic and legal theories on the advantages and disadvantages of patents in general. Chapter two discusses the administration of the British patent system and the role of patent agents in this process. Chapter three focuses on patent case law and investigates whether there was a judicial bias against patents as well as tracing the development of patents from a royal privilege to a modern intellectual property right. Chapter four turns towards inventors and whether they could properly enforce their patent in court. Chapter five goes in depth to explain certain key aspects of patent protection, such as patentability of processes, the interpretation of the novelty requirement and the degree of specification required for patent protection.

Bottomley does an excellent job of describing the maze of petitioning for an invention before 1852. Inventors faced a time-consuming battle involving huge costs in order to get their inventions patented in the early eighteenth century. Patent agents from the 1770s onwards assisted inventors 'in a myriad of ways' (66), which increased the number of patent applications and the number of patents awarded. This increase in patent awards correlates with judicial developments better protecting patent rights. Bottomley sets out the arguments and conclusions of two main authors on the patent system of the British industrial revolution: Harold Dutton's *The Patent System and Inventive Activity During the Industrial Revolution, 1750-1852* (1984) and Christine MacLeod's *Inventing the Industrial Revolution: The English Patent System, 1660-1800* (1988). Bottomley refutes Dutton's and MacLeod's findings that there was a judicial bias against patents in a number of ways. He proves that not nearly as many cases were lost by patentees as perceived, and provides sound reasons for why some of these cases were lost. He shows that both common law courts and equity courts not only handled patent cases with a lack of prejudice, but also developed patent law significantly by providing protection for processes and improvements of other patents. He highlights an important observation by Biagioli, who considered the patent as a contract between the inventor and the government, with the specification as consideration for the public (47, 89). This development shows similarities with copyright law in the eighteenth century, which is considered a social contract between the author, the booksellers and the public (R. Deazley, *On the Origin of the Right to Copy*, Hart Publishing, 2004). A continuing narrative throughout these chapters is that, due to this development of specification, patents evolved from royal privileges to intellectual property rights.

One missed opportunity of the first part of the book is the failure to consider in detail what is incorporated in the Statute of Monopolies (1624) on manufacture patents. The case law on manufacture patents, as discussed in the book, was, until 1852, decided on the law of the Statute of Monopolies. An analysis of the Statute of Monopolies, while not essential to understanding the case law analysed in the first part of the book, would certainly complete the legal analysis of the law and case law on manufacture patents until the Patent Law Amendment Act of 1852.

With chapter six the second half of the book starts, focusing more on the economic and social aspects of patents and the patent system. In chapter six, Bottomley picks up where he left off in chapter five: the specifications of patents, albeit now looking at the dissemination of knowledge by way of publishing patent specifications in journals. Chapter seven describes the market in patent rights by examining how the law provided patentees and investors with the legal means to transfer patent rights, supporting the frequency with which these transfers occurred with empirical data. Chapter eight narrates the (legal and economic) troubles and triumphs of two of the most important inventors of the industrial revolution: Thomas Newcomen and his atmospheric engine, and James Watt's improvement of that engine with the separate condenser. Lastly, chapter nine focuses on the emergence of the joint-stock company in the second quarter of the nineteenth century and gives an insight, backed by empirical evidence, into how these companies invested in patents. This chapter also seems to serve as a

reinforcement of the idea that patents were viable for trade in a growing economy in the nineteenth century, a continuing narrative in the second half of the book.

A point of light criticism in the second part of the book concerns the in-depth case studies of Newcomen's and Watt's inventions in chapter eight. They do not seem to be particularly relevant for the overall point that Bottomley makes, namely that inventions and their patent rights were a highly valuable commodity from which an inventor and the public both (financially) benefited during the industrial revolution. To spend thirty-five pages of a 330-page book on two inventions seems rather excessive. Bottomley does explain that the case studies were 'intended to be illustrative of the benefits that could accrue to inventors from the market in patent rights at the outset of the Industrial Revolution' (263). However, as these two inventions were among the most important of the whole industrial revolution, it would perhaps have been more illuminating to compare one of these two highly lucrative 'atypical' (262) inventions to a more anonymous 'typical' invention in that time to drive home the point. All in all, the second part of the book gives a good overview of the market of patent rights as well as portraying how the patent system, with the specification requirement, in particular, boosted the number of inventions and subsequent patents.

Throughout the book, Bottomley overturns conclusions reached by other authors, in particular, the previously mentioned works of Harold Dutton and Christine MacLeod. The reason for picking apart these two monographs and holding them against the light is obvious: these two works assessed the contribution of patenting to the industrial revolution, bringing it into the forefront of our understanding, and little has been said about it thereafter. Bottomley provides a fresh view of his findings on the operation of the patent system while addressing certain misconceptions in Dutton's and MacLeod's monographs and subsequent publications. That alone would make this book worthwhile, but the main strength of *The British Patent System during the Industrial Revolution 1700–1852* is its thorough and well-sourced legal and economic analysis of the British patent system before and during the industrial revolution.

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<https://doi.org/10.1080/01440365.2017.1388004>

